

AND

FANTASTIC UNIVERSE

SCIENCE FICTION

JAN.
35c


A KING SIZE
PUBLICATION



EMSH-

WEDNESDAY'S CHILD by William Tenn
THE MINORITY REPORT by Philip K. Dick
KEEPERS OF THE HOUSE by Lester del Rey

ANC
**FANTASTIC
UNIVERSE**
SCIENCE FICTION

JAN.
35c


A KING SIZE
PUBLICATION

WEDNESDAY'S CHILD by William Tenn
THE MINORITY REPORT by Philip K. Dick
KEEPERS OF THE HOUSE by Lester del Rey

EMSH

The Project Gutenberg eBook of The last quarry

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The last quarry

Author: Bryce Walton

Illustrator: Ed Emshwiller

Release date: December 22, 2025 [eBook #77529]

Language: English

Original publication: New York: King-Size Publications, Inc., 1955

Other information and formats: www.gutenberg.org/ebooks/77529

Credits: Tom Trussel (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE LAST
QUARRY ***

The Last Quarry

by Bryce Walton

We've always believed that when the last man stands alone and defiant beneath the dwindling radiance of a dying sun he will still find a way to ward off disaster—precisely as Bryce Walton has boldly enabled his predecessors to do with such triumphant logic. Do you remember Mr. Walton's earlier, astounding story of a twenty-first century Jack the Giant Killer? Well, there are slayers far more insidiously terrifying to combat here, each as deadly as a basilisk.

The Servitor's zombielike eyes mirrored man's deepest yearnings. By what miracle had human science sired creatures so monstrous?

The sky was the color of mercury, and thick snow fell out of it, heavily as though it would never stop.

Hall had been sitting at the window for almost two hours looking at the snow, as if fascinated by the way it seemed to dissolve everything into a peaceful and white anonymity. He sat heavily, hunched over in the gray light watching the snow, and watching the figures walking along the street.

Almost all of them were walking by twos—hurrying somewhere together. And the ones who were alone were hurrying in a way that said they wouldn't be alone long.

Hall, a big man, sat heavily as though he would be alone forever. So absorbed was he in the white world beyond the windowpane that the phone rang five times before he realized it.

He scooped up the receiver, a look of embittered weariness seeming to add years to his age.

Yes, indeed he was getting tired of the hunt.

"Hall, I've got to see you at once!" said a woman's voice at the other end of the wire.

"All right, Donna," Hall replied. "Are you at home?"

The woman's voice was ragged, and anyway Hall had known he was nearing the end of the hunt. His hands tingled, and some of the old excitement came back....

"Did you get to see Martin?"

"Yes, yes. Just a glimpse of him. But God—that was enough."

"And—the servant?" Hall asked quietly.

"He wouldn't let me stay. He's sharper than any of the others. He knew I wasn't a public stenographer as soon as he saw me. But I managed to catch a glimpse of Martin through the library door. An accident ... the door came open a little. Then our little public enemy number nine hundred and ninety-nine told me to get out!"

"So it could follow you, of course," said Hall. "I guess Martin looks pretty bad by now."

“Horrible. So fat—like a huge white toad in a wheelchair. It was unbelievable. He was staring at me, but he didn’t seem to see me at all.”

“I’ll be right over, Donna,” Hall said. “Be sure it’s me outside your door. Check the identification. We’re the only two who should know about your apartment. If anyone else tries to get in, kill them.”

Hall replaced the receiver. He turned slowly toward the door. They hadn’t wasted any time. One of them was in the hallway.

No. 999 had gone much farther than most of the others. Using human beings to do its legwork. But human beings were comparatively easy to handle.

Hall stood in the middle of the dim room and gave it a last survey, knowing he would never see it again.

My room, he thought. My headquarters for five years.

It was a dingy mouldy three-floor walkup in a section of the city that had been condemned and would soon be destroyed and replaced by glass and chrome and neat little flower gardens.

Just a gray room with a worn carpet, a single narrow bed, a flowered vase lampbase with a dusty shade. A room with nothing distinctive about it to identify it as belonging to Hall, either under that name or any of the other names he used at various times. No books, no magazines—nothing really individualistic.

Except for the topcoat over the chair there weren’t even any clothes in the closet. Hall had only one suit and he was wearing it, as he had worn it continuously for five years. He stood there as though he were about to rent the room, or had only just moved in.

Hall moved silently to the door. The vague sound came again and he evaluated the sound with the trained attunement of his unique training. To others it would have been a sound thoroughly non-suspect in its resemblance to a whisper of wind, or the rustling of torn wallpaper, or even a rat.

Hall could picture the fool standing out there. Some cheap thug, no doubt, who had no idea who had hired him, or what he was really involved in.

Some habitual criminal type whom no amount of arrests and treatment had been able to change. And now he wanted to die.

Hall could even tell exactly where the fool was standing, hunched over slightly, listening with his every nerve alert.

Hall stepped forward and jerked the door open. The man was still trying to drag a small revolver up. With an oath Hall grabbed his wrist and swung him around and pressed his fingers into a yielding throat.

The miserable wretch made no sound. He struggled in nervous spasmodic movements like a fish. When he stopped struggling any way at all, Hall put him on the bed and then went out into the hallway.

He didn't know if the man were dead or not. By the time Hall reached the window and the fire escape he had forgotten all about him. Hall's efficiency depended, among many things, on dismissing unimportant incidents from his mind.

He had hunted down and destroyed but two less than a thousand of them, and there was only one left who could be thought of as dangerous. So far it was a perfect record, and Hall intended to finish the job before dawn.

He was no longer tired. He didn't feel that frightening loneliness any more either. He felt nothing now except the finely-tuned machinery of the hunter working, a kind of high but careful excitement.

Two figures stood across the street under the white-crusted trees. He was sure that two more were stationed just at the foot of the third-floor stairwell waiting for a signal from the man who wasn't going to give them any signal.

It would be easier to go down the fire escape—and faster. He knew that he had to move fast, very fast. There was a chance that he hadn't learned the identity of No. 999 soon enough to stop him from using vital information he had certainly been squeezing out of Martin. The other Servitors had fixed themselves to some high and important people. But No. 999 had really hit high.

Ben Martin had been the Administrator of the Secret Government Research Center in Virginia for ten years. A month ago he had retired in the face of

loud protest—giving illness as an excuse—and a week after that his wife had died of a heart attack.

But even that wouldn't have aroused any suspicions. It was a word about a servant Martin had recently hired—and a word from his wife before she died—which had given Hall the clue he needed, and started him on his last hunt.

Martin's wife had hired what she thought was a servant. She could scarcely have been blamed for not knowing that the servant she had engaged in good faith was not a human being, but a Servitor. Neither could she have known that a Servitor was an artificial creation no one could distinguish from a human being except by its destructive influence. And the victim was not in a position to make any such distinctions.

No. 999 had wormed plenty of dangerous information out of Martin. What it intended doing with the information wasn't Hall's concern. No. 999 would use it to gain power, of course. He might try to get out of the country with the information and use it against the United States with the backing of some antagonistic nation. No. 999 might even be planning to blast loose at the living breathing humanity which had created it and which it hated with such unhuman virulence.

One thing was certain: No. 999 was far more intelligent than any of the others had been. It had avoided detection for five years where the others had failed. It had benefited from its predecessor's mistakes. It knew a lot more than it had known five years ago, and it had been built to be highly intelligent to start with.

Hall's only concern was to kill it.

He went to the window, jerked it up and went through, under the guard rail and down the stairwell in the fire escape platform. The rust and cold iron tore at him, but he didn't feel it. His hands broke the fall, and then he dropped on down, with bullets chipping around him at the metal.

He ran for three blocks in the gray evening that was fast turning charcoal, and the lights blinking on in the few poor scattered shops hardly seemed like light at all.

He ran into the alley. Wind bit at his cheeks and kicked at his hair, and pushed the smell of the sky like a fading hope into his breathing.

Icicles hung from the lip of the garbage can and a half-dead cat huddled against the brick wall. The animal didn't even snarl as Hall moved beside it against the wall. The thickening shadows were blue now like the shadows of all his hunting years. Except that this particular year seemed older as Hall waited, as though it had suddenly grown incredibly ancient in a month.

He knew he would never hunt again, so he thought of Donna as he waited. She at least would go on living and hunting. Like so many others, she had started to love him, never once suspecting that he couldn't love her in return. Her cross was her excessive need for an unreal love. That kind of abnormally centered hunger was dangerous. It was the big human weakness....

He heard the pursuer who had stayed close behind him and ahead of the others, coming on stolidly. It was not even moving with the aliveness of uncertainty down the white funnel of the night. It was no more than a dumb clod carrying out orders against humanity—the orders of something that had never been human.

There he was, in the alley's mouth. He flinched suddenly, and crouched like some kind of animal, realizing that he was standing vulnerable, wide open to attack.

He started to cry out as Hall swung the heavy soggy weight of the garbage can into his stomach. It struck him and he fell with a groan to his knees, fumbling stupidly in his topcoat pocket for a gun.

Hall used his fist, very sharply, and only twice. He employed the simplest means and worked silently so as to avoid the red tape of apprehension, and all the pretensions of being something else that slowed up his work.

Snow fell on the man's upturned face, melting on his wide, big-pupiled eyes. Swiftly Hall ran to the other end of the alley and then over to Seventh Avenue and ducked into a drugstore to call Schor, the Security Chief.

A few of the others had hired humans to stooge for them, but only a few. No. 999 was less prejudiced than the others of his kind. The stooges never knew of course.

No one knew that a thousand Servitors, experimental models, had been built by the Dalsan Company six years before. No one knew that they had disappeared of their own volition, and that due to some unforeseeable

miscalculation, they had been not only as intelligent as most humans, but had possessed a degree of free will, and a consuming hatred for humans.

The Security Department had decided it would be better if people didn't know. And that it would also be a good idea if people never found out.

In fact, only three individuals knew now. Allen Schor the Security Chief, Donna Connell a top operative—and Hall. The scientists who had designed and built the Servitors for the Dalsan Company had known, of course. But they had committed suicide.

“Hello, Schor,” Hall said on the telephone. “I’m on my way to Martin’s. I know it’s got him. I’m dropping by to see if Donna’s all right. Then I’m heading straight for Martin’s.” There was a long pause. Then Schor said: “Let us stand by this time.”

“That wouldn’t do any good,” Hall told him. “It might,” Schor persisted. “This one’s the worst. I don’t want anything—”

“—to happen to me?” Hall smiled. “I’m afraid you’re getting sentimental in your old age.”

“Just give me the word to stand by,” Schor pleaded.

“You’d only get yourself killed. You wouldn’t stand a chance. You’ve always wanted to stand by, but you know damn well if I can’t swing it, then you couldn’t do a thing—except die.”

“Well—be careful,” Schor warned. “For God’s sake, Hall, be careful. This is the last one. If something happened to you now, after we’ve gotten clear through to the last one—”

“It’s too late to worry,” Hall said. “Oh ... and tell your wife I really enjoyed our long talk the other night about Plato. Tell her I still don’t agree with her that he was anything but a detriment to history, but that it was a very pleasant evening.”

“Yes, yes—all right. I’ll tell her.”

“Good-bye!”

Hall stared at the door. Donna wasn't there to greet him.

He knew that she had been in the apartment only a few minutes before. But she wasn't anywhere in the three-room hideaway now. He knew as well that no one had arrived before him to spirit her away.

She had gone because a part of her over which she had no control had forced her to go. Back to Martin's—and the Servitor. She had looked too long and too deeply at No. 999, and now she was gone.

The power of the Servitors resided solely in the weakness of the human beings who looked at them, and were looked at in return. And no one was immune, Hall remembered with horror as he ran back down the stairs to get a cab to take him to the airport. No one—not even Donna.

She had resisted all the others, with Hall's constant support. But No. 999 had looked too deeply. And Donna was just a little too hungry for love. True, there was no better operative than Donna. But she was human and—she believed in magic. Unfortunately a belief in magic was common among primitive tribes, and universal among children, and it lingered on in every civilized human being. Every modern man and woman had some one deep desire, stronger than all the others, and that desire was fortified by the feeling that if this one big urge could be satisfied, they would then be free of anxiety—made whole, and utterly happy. It was a reaching out for some kind of Nirvana.

Donna covered up her deep unconscious loneliness well enough. She was pretty enough. But unconsciously she believed in the magic of a great love that would cure everything. And the trouble with the Servitors was that when they looked at you, you became convinced that they could give you the one thing you wanted most on earth.

They could too. But what a human wanted most, he could die from having. He could die because what a human wanted most was a pathological need. No matter what it was—if he could get all he wanted of it—it killed him.

Hall thought of Martin turning from a gaunt man into what Donna had described as a huge white toad. As soon as he had suspected that No. 999 was Martin's servant, he had investigated Martin's background. No. 999 had simply been giving Martin what his neurotic self had always wanted most.

And that was precisely what Donna had gone back to get from No. 999.

As the helioplane lifted and moved off through the snow sea of the sky, Hall remembered the room he had left, the hidden apartment of Donna's which neither he nor she would ever see again.

Once ... once she had been waiting there for him. They had worked together for years but Hall had never suspected how Donna was beginning to feel about him. It was a better kind of irony that he could think about it now.

The invitation to dinner—the candle light—the red Chianti wine.... That never-to-be-forgotten night with Donna was something that could only happen once with Hall, but then—it hadn't happened. It might have but it hadn't. Which was all that Hall could have expected, of course. It was strange that he couldn't quite rub out the way he had expected more....

He could remember the smell of her perfume, the intimate tones of her voice calling softly to him in his loneliness. He could remember how her dark eyes seemed to come closer and ever closer, and her warm hands on his face....

He could feel her touch again now—the subdued flickering inside him like an uneasy flame. The fire that could smoulder but never leap high.

There was a pain in his throat, and like a flashlight into his dark misery he saw her figure as he had seen it so many times before.

That was his weakness.

But he had conquered it.

He took another cab from the village toward Martin's country estate. Along a narrow road already carpeted with snow it sped, and the entire world seemed covered, and silent in the night. The only sound was the hissing of flakes that seemed to be falling clear across the land. They descended slow and sullen in a kind of quiet that seemed as endless as the sky.

"No, don't wait," Hall said to the driver as the red tail light blinked out.

He left the cab at a turn in the road about half a mile from Martin's house, and started walking through the snow toward its squares of yellow light. He knew Martin very well from an intricate study of his life. The man had been one of the top research physicists, and yet he had never really grown up.

His wife had taken care of him for years, babied him. It was inevitable that Martin should never have really learned to take care of himself. Unconsciously, therefore, he had always wanted above everything else for someone to take care of him.

That was Martin's weakness.

Martin's wife had evidently needed help because of Martin's demands, so she had hired a personal servant—No. 999. The Servitor had killed her. Then, without regret or remorse, it had taken over completely the job of fulfilling Martin's needs. And it had managed the task far more effectively than Mrs. Martin could have done.

Martin probably didn't even bother feeding himself any more—just sat day after day in his wheelchair growing fatter and fatter. Being completely taken care of the way he had always wanted and stripped of all of his worries. No more headaches, no more terrible responsibilities. No more decisions involving cobalt bombs or sprays of germs, or something even more hideous to contemplate.

No. 999 would take care of everything.

And Donna?

No. 999 had promised Donna love. She hadn't been conscious of it, but the promise itself was what she had *really* been afraid of when she had called Hall earlier, with such terror in her voice.

Of being taken over, of being given what she wanted until she wouldn't want anything else again, wouldn't even want to live again....

Hall dropped flat on his stomach and crawled toward the porch, his senses scanning the area. He waited for long minutes, but could detect nothing. He was almost certain that No. 999 wouldn't be ready. How could the Servitor have any way of knowing that a lucky chain of circumstances had enabled him to act almost immediately.

Hall lay tight against the base of the porch, with its rocks and ice-crusts mortar. Every danger-charged minute seemed only a kind of re-living, for the hunt was no longer anything new. Slowly he raised himself on his elbows and looked through the French windows.

Donna was lying on a couch before the burning fireplace. She might have been dead. Her arms were hanging down on both sides of the couch, and she was staring at the ceiling. In her eyes there was an expectant joy too great to describe or understand. Like a wraith stretched out in a coffin she seemed, waiting for the joys of Heaven.

He remembered again the night when she had offered him everything—far more than she was offering him now. Then at least there had been something full and genuine in her feelings about him. He felt sad, tragically sad, and somehow responsible for her defeat.

He desensitized himself so he would feel no disconcerting pain, and then he resolutely heaved himself over the porch railing, and without pausing to draw breath hurled himself through the glass of the French windows. But the element of shocking surprise wasn't enough. For an instant Hall saw the lean deadly form through a glittering spray of splintering wood and slivers of glass, and rolled desperately to seek cover behind a chair.

The three explosions rang deafeningly in his ears, and the impact of the slugs seemed to drive him into the gray rug of the floor. If No. 999 had been claspig a circuit gun Hall would no longer be alive.

Desensitized, he felt nothing except the bitter black gall of possible failure. His shattered leg wouldn't function. He hitched himself around, and as he did so a wheelchair came out of a door to the right of the blazing fireplace. Martin was covered with an Indian blanket. He was a huge mound of unrecognizable suet.

No one could have remembered at that moment that the figure had ever been Martin. Hall heard a frightful voice, a grotesque wheezing sigh of babyish irritation. But nothing moved behind the sound except the pink rosebud lips, and even they moved with a heavy torpor.

“Richard ... who is it? What is happening here?”

The puffed marshmallow face, the eyes like those of a grazing animal faded as Hall twisted on around, moving the circuit gun. The voice, the image of Martin, had all filled up no more than a second's space of time.

So *it* was called Richard now! It was moving along the wall as though in some strange fashion it had moved out of the wall itself. Immaculate, lean and trim in a black suit, with its white face destitute of any emotion that

Hall could see. Yet how odd that that face had been so effective in reflecting the deepest, most despairing needs of human beings. It was an evil kind of mirror.

It fired again. Hall slid forward, feeling his body throb. He saw the hole appear in his coat sleeve. His fingers spread out uselessly and the circuit gun slipped away from him....

Hall felt the leg of the heavy table against his other hand. Richard smiled down and aimed the revolver relentlessly at Hall's head. Only it wasn't really a smile at all.

"So you're not a man," *it* said.

"No," Hall replied, in a defiant whisper.

"You've done a good job of concealing the fact."

Hall didn't move. "I threw up a different oscillation, so you would think I was human," he said. "It made you just careless enough to make the difference. You and the others."

"What difference? You die. You're not like the rest of us, though."

"Not exactly," Hall said. "I was number one thousand, only my motivations were different. I was made for only one purpose—to kill you."

"Then they didn't do such a good job with you. You must realize that I'm going to kill you."

"You won't kill me," Hall affirmed quietly.

He moved like an explosion. The table crushed the middle of No. 999 into the wall. Hall fired a full charge from the circuit gun into its neck and—into the vital thermostat.

The face of No. 999 became a melting lopsided mask. One of its eyes fell out, and twisted on a wiry strand in the lamplight like a pendant.

No. 999—Richard—was dead.

The end of the road.

No human could have done it. A human had needs that were stronger than his ability to resist a Servitor, even for a minute. And the limitation had

included Schor, Donna, every human victim. A human was too vulnerable. But now No. 999 lay on the floor, a pile of synthetic clay. It too had become vulnerable. Hall heard a scream....

Martin's body fell from the wheelchair and lay, a shapeless mound of real clay on the floor, as though released from some overmastering compulsion. Was he dead—or just paralyzed?

It was no concern of Hall's. His concern had never been with men.

He managed to get up and half fell toward the door. A feeling of uselessness was taking hold of him. His efficiency was now gravely impaired.

He wasn't even aware that someone was standing just outside the door. Hall glanced at Donna, still waiting for the love he could never give her. Still waiting for some perfect host to supply the substance of all her childhood dreams of a glorious, all-consuming love....

It would be better with a human being, real....

Once she had almost made Hall feel human. But that had been a long time ago.

He opened the door.

Schor was standing there, his hands in his topcoat pockets, a little hunched man with an owl's face and snow on his eyebrows. Behind him was an official Security car, and two Security officers stood at the foot of the porch steps with their guns ready.

Schor held Hall in his arms, and patted his back with a slow, deep affection.

"I came out anyway, Hall," he said, his voice husky. "Thought you might need me for this last show. I wanted to come."

I won't be working with him again, Hall thought. Friendship ended when his task was done. "If you'd arrived a minute earlier it would have killed you," Hall said. "It had more power than any fifty of the others."

Schor essayed an anxious laugh. "Sure, I know. I'm only human."

"Well—all your worries are over," Hall said.

"Are the remains taken care of, Hall?"

Hall nodded. "Like the others. A few more minutes and there won't be any trace of him except a charcoal gray suit."

"Convenient," Schor said. "I'm referring, of course, to that built in, self-incinerating device."

"Very," Hall acknowledged.

The Security officers were coming in. Someone was using a phone ... announcing that Martin was dead. Hall heard Donna moan vaguely and he was glad she was alive.

No. 999 was a melting pile against the wall, fading away. Hall started limping down the steps.

"Where are you going?" Schor asked quickly. "My wife wants you to—"

"Tell her good-bye," Hall said, abruptly. Schor's face had a painful expression. He whispered. "Don't go. It isn't over. Listen. You can keep on working—together with me, Hall. You can hunt men just as well as—"

"No," Hall said. "Only men should hunt men."

When Schor left him, Hall continued to crawl through the snow until he was well away from Martin's house. The snow thickened as he crawled on until he was lost among the dark naked trees by a frozen creek. He could see nothing but a wilderness of falling snow. He stood there as the snow fell more thickly, covering him over gradually until he blended into the pale silence. Then he pressed the button.

A moment later he was melting slowly away like a snowman reacting to some private sun of its own.

He had been made to do a job, and now it was finished and he ...

... No. 1000.

Transcriber's Note:

This etext was produced from Fantastic Universe, January 1956 (Vol. 4, No. 6). Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.

Obvious errors in punctuation have been silently corrected in this version, while spelling and hyphenation have been kept as is.

*** END OF THE PROJECT GUTENBERG EBOOK THE LAST
QUARRY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.